

CONTRACT № IN-1308

Hong Kong Special Administrative Region, China

Date: 13/08/2025

Qiansu Shipbuilding Services Co.,Ltd, hereinafter referred to as the "Supplier", place of business with the legislation of the People's Republic of China, represented by the _____ on the one hand, and **INTERCOM FINANCE LIMITED**, hereinafter referred to as the "Buyer", place of business with the legislation of the Hong Kong Special Administrative Region of the People's Republic of China, represented General Director Rashad Karimov acting on the basis of the Charter, on the other hand, hereinafter collectively referred to as the "Parties", have concluded this Contract as follows:

1. SUBJECT OF THE CONTRACT

1.1. The Supplier agrees to transfer the ownership for the Products (hereinafter referred to as «Goods») to Buyer and documents relating to it, and the Buyer agrees to accept and pay for the Goods in accordance with the terms of present Contract and Specifications, which are signed by both parties and are an integral part of present Contract.

1.2. The Supplier guarantees that the Goods belong to the Supplier by right of the ownership right, are not arrested, and are not subject of claims by third parties.

2. VALUE AND TERM OF THE CONTRACT

2.1. The total cost consists of the sum of all Specifications of goods. 2.2. The name, quantity and price, total value of the Goods is indicated in the Specifications.

2.3. Prices for Goods are fixed in Chinese yuan (CNY). After signing each Specification, prices become firm and cannot be changed.

2.4. The value of the Goods includes all taxes, duties and fees in the country of the Supplier and the expenses of the Supplier in connection with the fulfillment of obligations under present Contract, the cost of packaging, that complies with Section 5 of present Contract, labeling (if applicable) and pallet/box/bags (if applicable).

2.5. The present Contract shall be effective from the date of its signing by both Parties until December 31, 2026.

3. TERMS OF PAYMENT

3.1. The currency of payment under present contract is the Chinese yuan (CNY).

3.2. Payment terms for each lot of the Goods shall be fixed in Specifications and can be changed by Parties on prior written agreement.

3.3. The Buyer arranges payment on the invoice issued by the Supplier in a non-cash form via bank transfer to the Supplier's account specified in Section 12 of present Contract.

3.4. All bank expenses and fees payable while performing the current Contract in the Buyer's bank account country and in accordance with its laws and regulations shall be paid by the Buyer. All bank expenses and fees payable while performing the Contract at the territory and in accordance with legislation of the Supplier's country, as well as the expenses associated with transit of the Goods/money through the third countries (if applicable) shall be paid by the Supplier.

4. TERMS OF DELIVERY

4.1. The quantity, completeness, technical conditions and characteristics of the Goods, shall be agreed by the Parties in the Specifications to present Contract.

4.2. The delivery time is specified in the Specification.

4.3. When determining the delivery basis, the Parties agreed to use the terms of Incoterms 2020.

4.4. Delivery terms are specified in the Specification.

Other than mentioned terms of delivery and final point of delivery must be specified in Specifications.

4.5. 2 working days prior shipment The Supplier is obliged to send to the Buyer signed and stamped copies of the following shipping documents (in English) by e-mail:

- Commercial invoice with Contract No.;
- Bill of Lading (SMGS, CMR);
- Packing List;
- Export Customs Declaration.
- Certificate of origin;
- Certificate of quality.

4.6. The Supplier shall make reference to HS code in the shipping documents.

4.7. Signed and stamped copies of the specified shipping documents have full legal force.

4.8. The Supplier sends to the Buyer the originals of the signed and stamped shipping documents together with the Goods:

- 3 original Commercial Invoices;
- 3 original Packing Lists;
- 3 original Bills of Lading or waybills;
- Export Customs Declaration (if applicable).
- Certificate of origin;
- Certificate of quality.

4.9. Additional list of documents, which is necessary for supply is indicated in the Specifications.

4.10. The consignee under the present Contract there will be INTERCOM FINANCE LIMITED

The dispatching and accompanied goods documents should be issued on the consignee.

4.11. The Buyer can make preliminary acceptance of Goods before shipment from the Supplier's warehouse (pre-shipment inspection, the terms of which are agreed by the Parties in the Specifications).

4.12. The Parties agreed that the transfer of ownership will be determined by the date of transfer of the risks of accidental loss and damage to the Goods in accordance with the terms of delivery under the terms of Incoterms 2020, unless otherwise stated in the Specifications.

5. PACKING

5.1. The Goods must be properly marked in accordance with the requirements of the Buyer's country and securely packaged in such a way to ensure the integrity and quality of the Goods during its loading / unloading, transportation, storage. Any special requirements for packaging / labeling of the Goods shall be agreed by the Parties.

5.2. The Supplier is responsible for proper labeling, packaging and ensuring the safety of the Goods.

5.3. Cost of package, such as bags, boxed, pallets, is included in the price of the Goods.

5.4. Each package must be marked by the Supplier with a self-adhesive label containing all the necessary information and having the characteristics specified by the Buyer. The packaging label and symbols on the packaging must be preapproved by the Buyer.

5.5. Marking on each package shall be made in English and shall contain the following information:

- Description of the Goods;
- Gross and Net weights;
- Lot/batch number;
- Date of manufacture
- Country of Origin;
- Manufacturer.

5.6. Additional requirements for product labeling are specified in the Specifications.

5.7. The Supplier is obliged to carry out the placement and fastening of the Goods in a container, wagon, which guarantees the safety of the Goods during road, rail and sea transportation. If the Goods are incorrectly placed and fixed in a container, wagon, which during transportation can lead to its loss, damage or damage, the Supplier shall be liable in the amount of the cost of the Goods.

6. QUALITY OF THE GOODS

6.1. The Supplier must provide for quality of the Goods in conformity with terms of the present Contract and Certificate of Analysis (Quality Certificate and Test Report) of the Goods.

6.2. The quality guarantee of the Goods is 12 months from the date of transfer of the Goods from the Supplier to the Buyer. The transfer of goods to the Buyer is confirmed by the date of shipment of the Goods specified in the shipping documents (Bill of Lading, CMR, CIM-COTIFF).

6.3. The Supplier is obliged to bear warranty obligations for the quality of the Goods within the period specified in the technical passport, if this period exceeds the periods specified in clause 6.2 of present Contract.

6.4. If the Buyer, as well as other users of the Goods, detect any defects in the Goods, including non-compliance of Goods with quality requirements, incompleteness of goods, non-compliance of the actually delivered goods with the agreed in the Specification, etc., the Buyer has to notify the Supplier within 15 (fifteen) working days from the date of detection of the indicated defects about this in any way confirming the fact of sending the relevant notice to the Supplier. The provisions of this clause of the present Contract shall apply regardless of whether the indicated defects of the Goods were revealed before the issuance of shipping documents, according to which the Goods were transferred to the Buyer, at the time of shipment or after shipment within the guarantee period provided in clauses 6.2 and 6.3 of the current Contract.

6.5. In the case of non-conformity with the quality of the Goods, the Buyer can make a claim to the Supplier. Proper confirmation of lack of conformity is the examination certificate ("the Act of expertise") issued by any accredited laboratory of the Buyer or expert organization.

6.6. The date of the non-conformity of the Goods is the issuance date of Act of expertise.

6.7. The Buyer shall send the claim and the Act of expertise via E-mail and/or registered mail to the Supplier within 15 (fifteen) working days from the date of discovery of non-conformity.

6.8. The date of the claim is the postmark date of departure. The Supplier shall consider the claim within 10 (ten) working days from the date of its receipt.

6.9. In the case of a discrepancy in quality of the Goods, but the possibility of further intended use of the Goods, the Supplier, within 10 working days from the date of receipt of the claim, returns to the Buyer the difference between the actually paid cost of the Goods and the cost that correspond to the Goods of inadequate quality (subject to the Buyer's written consent to price reduction).

6.10. If the Buyer does not agree to the Supplier's return of the difference specified in clause 6.9 of present Contract, the Supplier undertakes to return the funds actually paid to the Buyer for the Goods that do not correspond to the declared quality within 20 (twenty) calendar days from the date of receipt of the claim from the Buyer, and also to make return - export of the Goods at Supplier's own expense.

6.11. The Buyer has the right to present the Supplier with a demand to replace the low-quality Goods with a high-quality one. Replacement terms are specified by the Buyer.

6.12. The Supplier shall bear all expenses for transportation, replacement or return of faulty goods.

7. QUANTITY OF THE GOODS

7.1. The goods shall be delivered in the quantity indicated in Specifications.

8. LIABILITY OF THE PARTIES

8.1. Both Parties shall be responsible for non-fulfillment and/or improper fulfillment of obligations undertaken in accordance with present Contract.

8.2. If the Buyer fails to meet its payment obligations, the Buyer shall be liable in the amount of zero point one percent (0.1%) for each a day of delay, which is considered a penalty for improper performance of obligations, and the total amount of the penalty for non-performance of obligations should not exceed five percent (5%) of the total value of the Goods delivered and not paid on time. The provisions of this paragraph do not apply to cases of making an advance payment / early delivery of the Goods.

8.3. If the Supplier fails to complete the delivery on time, as provided in the relevant Specification to present Contract, or if the Goods were delivered in incomplete quantity / with quality that doesn't meet requirements or without shipping documents, except for force majeure, a penalty is provided for the Supplier due to non-fulfillment of obligations in the amount of zero point one percent (0.1%) of the value of Goods for each day of delay that are undelivered / not appropriate quality / without shipping document .

8.4. In case of non-shipment of the Goods within the time period specified in the Specification, the Supplier returns the prepayment amount / advance payment to the Buyer within 3 working days from the date of expiration of the shipment of the Goods specified in the Specification.

8.5. Payment of the forfeit provided by present Contract does not relieve the Parties from fulfilling their obligations under present Contract.

8.6. The Supplier shall reimburse the Buyer in full within 10 (ten) calendar days from the date of receipt of the claim for all losses, fines, penalties, or other charges incurred by the Buyer due to the Supplier's fault, including those arising from violations of applicable customs, tax, or currency control regulations in the country of delivery or transit.

9. INTELLECTUAL PROPERTY AND CONFIDENTIALITY

9.1 All designs, drawings and other technical information relating to the Goods, including software provided by the Seller under this Contract and intellectual property rights acquired by the Seller prior to the execution of the Contract or in the course of this Contract, are and remain the property of the Seller, with the exception of those associated with the Goods (i.e. the ownership of the required documentation shall be transferred from the Seller to the Buyer along with the Goods).

9.2 The Seller warrants that at the time of manufacture, the Goods did not infringe any intellectual property rights in the country of manufacturer provided always that this warranty shall not extend to Goods manufactured according to the Buyer's designs, drawings, or specification and the Buyer will indemnify the Seller against any actions, claims or demands whatsoever arising by virtue of such manufacture.

9.3 All proprietary information including but not limited to drawings, specifications and technical data, business information whether written or oral, furnished by or on behalf of the Seller (including its affiliates) shall be treated as secret and confidential (both during and after the term of the Contract) by the Buyer and shall not, without prior written consent of the Seller, be used by the Buyer, or permitted by the Buyer to be used, for any purpose other than the performance of the Contract, or be disclosed by the Buyer to anyone outside the Buyer's organization other than to those persons whose duties require them to know the same, provided that such persons have given to the Seller a written undertaking not to disclose the same to any unauthorized third parties.

10. FORCE MAJEURE

10.1. In case of occurrence of circumstances which interfere with full or partial performance of corresponding obligations of any of the Parties under the present Contract, namely: earthquake, war, military operations of any character, blockade, or other circumstances which are outside of control of the Parties, time marked for performance by the Parties of the obligations, should be increased by term equal to time of actions of those circumstances.

10.2. Party for which it becomes impossible to fulfill its obligations under present Contract shall immediately notify the other side of the start and end dates circumstances which render impossible the fulfillment of its obligations.

10.3. The circumstances stated in such notification shall be witnessed by the Commercial Chamber of that country. If a party hereto fails to notify the other party of the Force-Majeure circumstances within 10 (ten) calendar days from their beginning, it shall be deprived of the right to refer to the circumstances as to the cause excusing that party from meeting its engagements under present Contract.

10.4. If force majeure circumstances last more than 30 days, either Party has the right to terminate the Agreement.

11. ARBITRATION

11.2. All disputes, disagreements or claims arising out of or in connection with this Agreement, including those relating to its execution, violation, termination, or invalidity, which cannot be resolved through negotiations, shall be finally settled by arbitration in accordance with the Arbitration Rules of the China International Economic and Trade Arbitration Commission (CIETAC). The place of arbitration shall be Shanghai, People's Republic of China. The language of the arbitration shall be English. The arbitral award shall be final and binding upon both Parties

12. MISCELLANEOUS

12.1. All amendments and supplements to present Contract shall be valid if made in a written form and duly signed by authorized representatives of the Parties to the Contract.

12.2. Facsimile copies of signature of present Contract and/or any facsimile copies of changes of present Contract have full legal effect.

12.3. The Parties come to agreement that the present Contract, its supplements and all other documents relating to the execution, amendment or addition of the present Contract may be sent by fax and/or by e-mail. It shall reliably ascertain that the document comes from the Party under present Contract.

12.4. The Parties acknowledge that all notifications and messages sent by the Parties to each other to the e-mail address and/or telephone numbers specified above are official correspondence under the present Contract and legally binding.

12.5. In case the Party fails to submit the original document, the copy of the document received by fax and/or e-mail will be deemed as legally binding and proper evidence in court.

12.6. None of the Parties shall be entitled to transfer its rights and obligations under present Contract to third parties without the prior written consent of the other Party.

12.7. In all other respects that are not provided for by present Contract, the Parties are guided by the provisions of international treaties.

12.8. This Contract has been concluded in 2 (two) identical copies in English language. Both copies have equal legal force, one copy for each of the Parties.

12.9. The Parties hereby agree that this Contract shall be governed by the laws of the People's Republic of China. Any disputes arising from or relating to this Contract shall be submitted to arbitration in China. The language of arbitration shall be English.

13. LEGAL ADDRESSES AND BANKING DETAILS OF THE PARTIES

13.1. Any alteration of the Supplier's bank account information shall be confirmed in a notification letter signed and confirmed by the Supplier. The time when the payment reaches the Supplier's bank account is deemed to be the time of payment of the Buyer.

BUYER	SUPPLIER
Intercom Finance Limited Reg.No: 74507662 Address: Unit 1603, 16th Floor, The L. Plaza, 367 - 375 Queen's Road Central, Sheung Wan, Hong Kong tel.: +994559300432 E-mail: krashad2222@gmail.com Bank details: Bank name: Bank of China Bank address: No. 1164 Middle Huathai Road, Shanghai, China SWIFT NO.: BKCHCNBJ300 A/C No. CNY: FTN788870026928	Qiansu Shipbuilding Services Co.,Ltd Reg.No: Address: tel.: + E-mail: Bank details: Bank name: China Construction Bank Branch: Nantong Gangzha Branch Bank address: No.830 Outer Ring North Road ,Chongchuan District, Nantong City, Jiangsu Province, PRC, China SWIFT NO.: PCBCCNBJNTX Beneficiary's A/C No.: 32050164263609014549